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Order Confirmation Act, 1921.



CHAPTER cxxii.

An Act to confirm a Provisional Order under the A.D. 1921.
Private Legislation Procedure (Scotland) Act
1899 relating to Edinburgh Corporation.
[8th November 1921.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Edinburgh Corporation Order Confirmation Act 1921. Short title.

A.D. 1921.

SCHEDULE.

EDINBURGH CORPORATION.

Provisional Order to authorise the Corporation of the city and royal burgh of Edinburgh to widen roads and acquire lands to confer further powers with respect to the financial administration of the undertakings of the Corporation to authorise the creation and issue of additional Corporation stock to provide for the redemption and cancellation of water annuities to borrow money to amend Acts and for other purposes.

WHEREAS the lord provost magistrates and council of the city and royal burgh of Edinburgh (hereinafter referred to as "the Corporation") are vested with the municipal government of the city and royal burgh of Edinburgh (hereinafter referred to as "the city") and are the local authority therein for police public health road sanitary and other purposes under among others the Edinburgh Municipal and Police Acts 1879 to 1920:

And whereas it is expedient that the Corporation should be authorised to make and maintain certain road widenings within the city hereinafter mentioned and to acquire lands for the purposes thereof:

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned (that is to say):—

For and in connexion with the road widenings	£
and improvements by this Order authorised	9,637
For the purchase of lands	4,150

And whereas the said works included in the said estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas it is expedient that the Corporation should be authorised to borrow money for the construction of the works authorised by this Order and for the purchase

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of lands and for the purposes of the water undertaking of the Corporation as hereinafter provided in this Order and should be empowered to levy rates and assessments : A.D. 1921.

And whereas it is expedient that in addition to the powers which the Corporation already possess for the creation and issue of stock further powers should be conferred on the Corporation for the creation and issue of stock as in this Order provided :

And whereas it is expedient to make provision as hereinafter mentioned with respect to matters relating to mortgages gas annuity certificates and water annuity debentures :

And whereas it is expedient that the perpetual annuities (or the balance thereof remaining unredeemed for the time) created by or under the provisions of the Edinburgh and District Waterworks Act 1869 should be paid off and redeemed and that the water undertaking of the Corporation and the whole lands estates properties and revenues of the Corporation should be freed and discharged thereof and that provision should be made for the redemption and extinction of the said annuities as in this Order provided :

And whereas it is expedient to amend the provisions of the Acts relating to the water undertaking the gas undertaking and the Water of Leith undertaking with respect to the redemption of debt and sinking funds as hereinafter provided :

And whereas it is expedient that the Corporation should be authorised as hereinafter mentioned to borrow money for the redemption of water annuities in terms of the provisions of this Order :

And whereas for the purposes of the Edinburgh and District Water Order 1914 it is expedient that the Corporation should be authorised to borrow money as hereinafter mentioned :

And whereas it is expedient to make further provision as hereinafter mentioned with respect to the filling up of vacancies in the town council and the periods of the retention of office by and of the retirement of councillors elected to fill such vacancies :

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And whereas it is expedient to authorise the Corporation to exercise the powers hereinafter mentioned for providing and maintaining rights of way :

And whereas it is expedient to confer further powers on the Corporation with respect to the improvement and widening of roads or streets the construction and maintenance of bridges over and tunnels or subways under any street and the prevention of the silting up or obstruction of the bed or channel of the Water of Leith :

And whereas it is expedient that further powers should be conferred on the Corporation as hereinafter in this Order provided :

And whereas plans and sections showing the lines and levels of the road widenings and improvements authorised by this Order and the lands proposed to be taken for the purposes thereof and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited with the principal sheriff clerk of the county of the city of Edinburgh and the same are hereinafter respectively referred to as the deposited plans sections and books of reference :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

Short titles.

1. This Order may be cited for all purposes as the *Edinburgh Corporation Order 1921* and the *Edinburgh Municipal and Police Acts 1879 to 1920* in conjunction with this Order may be cited as the *Edinburgh Municipal and Police Acts 1879 to 1921*.

PART I.

PRELIMINARY.

Division of
Order into
Parts.

2. This Order is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Road Widenings.

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Part III.—Finance Borrowing Powers and Assessments. A.D. 1921.

Part IV.—Miscellaneous.

3. This Order shall (except as otherwise in this Order provided) commence and have effect on and from the date of the passing of the Act confirming this Order which date is hereinafter referred to as “the commencement of this Order.” Commence-
ment of
Order.

4. In this Order unless there be something in the subject or context repugnant to such construction the following expressions shall have the meanings hereinafter respectively assigned to them (that is to say):— Interpre-
tation.

“Act of 1879” means the Edinburgh Municipal and Police Act 1879;

“Act of 1893” means the Edinburgh Improvement and Municipal and Police (Amendment) Act 1893;

“Act of 1913” means the Edinburgh Corporation Act 1913;

“Act of 1920” means the Edinburgh Boundaries Extension and Tramways Act 1920;

“Burgh assessments” means the burgh assessments imposed and levied by the Corporation under the Edinburgh Municipal and Police Acts;

“City” means the city and royal burgh of Edinburgh according to the municipal and police boundaries thereof at the commencement of this Order;

“City chamberlain” means the officer of the Corporation acting as city chamberlain treasurer of police and treasurer of the loans fund;

“Corporation” means the lord provost magistrates and council of the city;

“Corporation Stock Act” means the Edinburgh Corporation Stock Act 1894 as amended by the Edinburgh Improvement and Tramways Act 1896 and the Edinburgh Corporation Act 1906;

“Edinburgh Municipal and Police Acts” means the Edinburgh Municipal and Police Acts 1879 to 1920 and the Corporation Stock Act;

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- “Gas Acts” means the Edinburgh and Leith Corporations Gas Acts 1888 to 1919 the Edinburgh and Leith Corporations Gas (Standard of Calorific Power) Order 1920 and the Act of 1920 ;
- “Gas commissioners” means the Edinburgh and Leith Corporations Gas Commissioners incorporated by the Gas Acts ;
- “Gas undertaking” means the gas undertaking of the Corporation as defined in the Gas Acts ;
- “Lands and heritages” means lands and heritages as defined in the Valuation Acts ;
- “Loans fund” means the Edinburgh Corporation Loans Fund established under the provisions of the Corporation Stock Act ;
- “Mortgage” means a mortgage granted by the Corporation under the provisions of the Edinburgh Municipal and Police Acts or this Order ;
- “Order of 1916” means the Edinburgh Corporation Order 1916 ;
- “Sheriff” means the sheriff of the Lothians and Peebles and except when expressly limited to the sheriff includes his substitutes or any one of them within the county of Midlothian ;
- “Valuation roll” means the valuation roll made up in pursuance of the Valuation Acts and any supplementary valuation roll made up in accordance with the said Acts and the Edinburgh Municipal and Police Acts ;
- “Water Acts” means the Edinburgh and District Water Acts 1869 to 1914 and the Act of 1920 ;
- “Water trustees” means the Edinburgh and District Water Trustees incorporated by the Water Acts ;
- “Water undertaking” means the water undertaking of the Corporation as defined in the Water Acts ;
- “Water of Leith Acts” means the Water of Leith Purification and Sewerage Acts 1889 to 1908 and the Act of 1920 ;
- “Water of Leith Commissioners” means the Water of Leith Purification and Sewerage Commissioners incorporated by the Water of Leith Acts ;

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“Water of Leith undertaking” means the undertaking of the Water of Leith Commissioners vested in the Corporation under the Act of 1920; A.D. 1921.

And the words and expressions construed in the Edinburgh Municipal and Police Acts shall if and when used in this Order and when not inconsistent with the above constructions or with any of the provisions of this Order respectively have the same meanings attached to them as in the Edinburgh Municipal and Police Acts.

5. The Lands Clauses Acts are subject to the provisions of this Order incorporated with and shall form part of this Order. Incorporation
of Lands
Clauses Acts.

PART II.

ROAD WIDENINGS.

6. Subject to the provisions of this Order and to the powers of deviation hereinafter mentioned the Corporation may in the lines and situation and upon the lands in that behalf delineated on the deposited plans and described in the deposited books of reference and according to the levels shown on the deposited sections make construct maintain and use the works hereinafter mentioned or some of them or some part or parts thereof together with all necessary and proper works and conveniences connected therewith or incidental thereto respectively (that is to say):— Road
widenings.

Work No. 1 A widening and improvement wholly within the city and city parish of Edinburgh and county of the city of Edinburgh (Work No. 1) of the road known as the Colinton Road the said work being situate upon the south-east of the said road commencing at a point on the west side of the road known as Craiglockhart Terrace and terminating at a point upon the said Colinton Road six yards or thereabouts in a south-westerly direction from the said point of commencement:

Work No. 2 A widening and improvement wholly within the city and city parish of Edinburgh and county of the city of Edinburgh (Work No. 2) of the road known as the Colinton Road the said

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work being situate upon the north-west side of the said road commencing at a point thereon thirty-eight yards or thereabouts north-east from the northern boundary wall of the house or property No. 58 Colinton Road and extending in a south-westerly direction and terminating at a point on the said Colinton Road opposite to the south-west boundary wall of the garden or grounds of the house known as Waverley House one hundred and eighty-seven yards or thereabouts from the said point of commencement :

Work No. 3 A widening and improvement wholly within the city and city parish of Edinburgh and county of the city of Edinburgh (Work No. 3) of the road known as the Colinton Road the said work being situate upon the east side of the said road commencing at a point one hundred and sixty yards or thereabouts northwards from the centre of the south gateway giving access to the subjects known or formerly known as Edinburgh Hydro-pathic continuing thence in a southerly direction and terminating at a point on the said Colinton Road fifty yards or thereabouts south from the gateway aforesaid being a distance of two hundred and ten yards or thereabouts from the said point of commencement :

Work No. 4 A widening and improvement wholly within the city and city parish of Edinburgh and county of the city of Edinburgh (Work No. 4) of the road known as the Colinton Road the said work being situate upon the west side of the said road commencing at a point twenty-seven yards or thereabouts south from the south side of the private road giving access to the house known as Dundarach and extending in a southerly direction and terminating at a point on the said Colinton Road at or opposite the southern boundary wall of the garden or grounds belonging to the said house fifty-five yards or thereabouts from the said point of commencement :

Work No. 5 A widening and improvement wholly within the city and city parish of Edinburgh and county of the city of Edinburgh (Work No. 5) of the road known as the Colinton Road the said

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work being wholly upon the south-east side of the said road commencing at a point in the Colinton Road at or opposite to the north-east side of the road known as Lockharton Gardens and extending thence in a south-westerly direction along the Colinton Road to a point on the said road at the division or boundary wall between the houses or properties Nos. 157 and 159 Colinton Road being a distance of one hundred and forty-four yards or thereabouts from the point of commencement.

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7. In the execution of the said works or any of them the Corporation may deviate laterally to any extent within the limits of deviation shown on the deposited plans applicable thereto and may deviate vertically from the levels shown on the deposited sections to any extent not exceeding three feet.

Power to deviate.

8. If the works described in this Order and shown on the deposited plans are not completed within five years from the commencement of this Order then on the expiration of that period the powers hereby granted for the execution of the same shall cease except as to so much thereof as is then completed.

Period for completion of works.

9. The road widenings when the same shall respectively have been completed shall together with the surface rights in all lands laid into and appropriated for such widenings and the subsidiary works connected therewith vest in the Corporation and shall for all purposes form part of the roads to which they are respectively added.

Vesting of street works in Corporation.

10. Subject to the provisions of this Order the Corporation may enter upon purchase take hold appropriate and use the lands houses and property respectively shown on the deposited plans and described in the deposited books of reference or such part or parts thereof as may be required for or in connexion with the road widenings and improvements by this Order authorised.

Lands for works.

11. If there be any omission misstatement or erroneous description of any lands which may be required or taken for the purposes of this Order or any of them or of the owners lessees or occupiers of any such lands shown on the deposited plans or specified in the deposited books of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the lands in question

Omission or misstatement in plans or books of reference may be corrected.

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Certificates
to be
deposited.

12. The certificate of the sheriff shall be deposited in the office at Edinburgh of the principal sheriff clerk of the county of Midlothian and a duplicate thereof shall also be deposited at the office of the principal sheriff clerk of the county of the city of Edinburgh and such certificate and duplicate shall be kept by such sheriff clerks respectively along with the other documents to which they relate and thereupon the deposited plans and books of reference shall be deemed to be corrected in accordance with the certificate and the Corporation may enter on purchase take hold and use for the purposes of this Order any lands in accordance with such certificate as if such omission misstatement or erroneous description had not been made.

Limiting
period for
compulsory
purchase of
lands.

13. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Order shall cease after the expiration of three years from the commencement of this Order.

Stoppage
of roads
during
execution
of works.

14. Subject to the provisions of this Order the Corporation may during the execution of the road widenings and improvements by this Order authorised stop up temporarily the carriageway or footway of any street road or bridge as may be necessary and for that purpose may put up bars posts and other erections Provided that the Corporation shall before stopping up any footway under this section provide a temporary substitute therefor with access therefrom to any houses.

Power to
grant servi-
tudes &c.
by agree-
ment.

15. Persons empowered by the Lands Clauses Acts to sell and convey or discharge lands may if they think fit subject to the provisions of those Acts and of this Order grant to the Corporation any servitude right or privilege (not being a servitude right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Order or any of them in or over or affecting any such lands and the provisions of

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the said Acts with respect to lands and ground annuals or feu duties so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively. A.D. 1921.

16. And whereas in the exercise by the Corporation of the powers of this Order it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Corporation and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto therefore the provisions set forth in section 47 (Owners may be required to sell parts only of certain lands and buildings) of the Order of 1916 shall apply and have effect in respect of the properties mentioned in the First Schedule to this Order. Owners may be required to sell parts only of certain lands and buildings.

PART III.

FINANCE BORROWING POWERS AND ASSESSMENTS.

17. The Corporation in addition to the powers contained in the Corporation Stock Act and notwithstanding anything therein contained may at any time and from time to time create and issue stock for all or any of the purposes for which the Corporation are or may be authorised to create and issue stock notwithstanding that the stock so to be created and issued shall or may be of a different class from any stock already or hereafter to be created and issued by the Corporation and any stock so to be created and issued shall or may bear any rate of dividend which the Corporation may fix and shall be redeemable at the option of the Corporation at par at such period as the Corporation may fix but not exceeding sixty years from the first creation of any such stock and the provisions of the Corporation Stock Act shall subject to the provisions of this section apply to the stock so created and issued. Edinburgh Corporation Stock.

18. Any mortgage made and granted by the Corporation after the commencement of this Order shall be and be deemed to be validly executed notwithstanding any law or practice to the contrary if the same is sealed with the common seal of the Corporation and signed by one member of the Corporation and by the town clerk or a depute town clerk. Execution of mortgages.

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Register of
mortgages.

19.—(1) There shall be kept at the office of the city chamberlain a register of mortgages (hereinafter in this section referred to as “the register”) made and granted by the Corporation and before any mortgage shall be delivered to the mortgagee the city chamberlain shall make or cause to be made an entry in the register of the following particulars thereof (that is to say):—

- (A) The name and description of the mortgagee;
- (B) The number and date of the mortgage;
- (C) The term of repayment; and
- (D) The rate of interest;

and a certificate of registration shall be endorsed on the mortgage and signed or initialled by the city chamberlain or by a depute city chamberlain.

(2) In the case of a mortgage made and granted by the Corporation either before or after the commencement of this Order every assignation of the same granted after the commencement of this Order shall be intimated in writing to the Corporation at the office of the city chamberlain and the person making the intimation shall produce therewith such mortgage and the assignation thereof and the city chamberlain shall make or cause to be made an entry in the register of the date of any such assignation and of the names of the parties thereto and a certificate of registration signed or initialled by the city chamberlain or by a depute city chamberlain shall be endorsed on the mortgage.

(3) On the renewal of a mortgage the city chamberlain shall enter or cause to be entered in the register the following particulars of such renewal (that is to say):—

- (A) The date of renewal;
- (B) The term of repayment under such renewal; and
- (C) The rate of interest for the period of the renewal.

(4) On the discharge of a mortgage the city chamberlain shall make or cause to be made in the register a note of such discharge and the date thereof.

(5) The whole expenses of and attending the making and granting of mortgages by the Corporation shall form a charge on the loans fund.

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(6) So much of the provisions of section 83 of the Act of 1879 as applies to mortgages shall be and the same is hereby repealed. A.D. 1921.

20. Notwithstanding any provisions to the contrary contained in the Gas Acts with reference to gas annuity certificates the following provisions shall from and after the commencement of this Order apply and have effect videlicet:— Gas annuity certificates.

(1) Any annuity certificate made and granted by the Corporation under the provisions of the Gas Acts shall be and be deemed to be validly executed if the same is sealed with the common seal of the Corporation and signed by two members of the Corporation and by the city chamberlain or by a depute city chamberlain:

(2) In lieu of the form of annuity certificate prescribed by section 32 and Schedule G of the Edinburgh and Leith Corporations Gas Act 1888 and of the form of transfer prescribed by section 38 and Schedule H of the said Act all annuity certificates made and granted by the Corporation under the provisions of the Gas Acts and the transfers thereof may be in the forms respectively contained in the Second Schedule to this Order or as near thereto as may be:

(3) It shall not be necessary on the transmission of any annuity granted under the provisions of the Gas Acts to make and execute the declaration in writing provided for in the said Acts.

21. Notwithstanding any provisions to the contrary contained in the Water Acts with reference to water annuity debentures the following provisions shall from and after the commencement of this Order apply and have effect videlicet:— Water annuity debentures.

(1) Any annuity debenture made and granted by the Corporation under the provisions of the Water Acts shall be and be deemed to be validly executed if the same is sealed with the common seal of the Corporation and signed by two members of the Corporation and by the city chamberlain or by a depute city chamberlain:

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(2) In lieu of the form of annuity debenture prescribed by section 29 and Schedule A of the Edinburgh and District Waterworks Act 1869 and of the form of transfer prescribed by section 35 and Schedule B of the said Act all annuity debentures made and granted by the Corporation under the provisions of the Water Acts and the transfers thereof may be in the forms respectively contained in the Third Schedule to this Order or as near thereto as may be:

(3) It shall not be necessary on the transmission of any annuity granted under the provisions of the Water Acts to make and execute the declaration in writing provided for in the said Acts.

Redemption
of water
annuities.

22. The Corporation may at any time by resolution passed at any ordinary or special meeting of the Corporation determine to pay off and redeem the perpetual annuities created under the provisions of the Edinburgh and District Waterworks Act 1869 or the balance thereof remaining unredeemed for the time and on such resolution being passed such annuities shall be redeemable by the Corporation by the method and on the terms following that is to say upon transfer to the registered holders of such annuities of two and a half per centum consolidated stock of the United Kingdom at the rate of two hundred and forty pounds of the nominal value of such stock for each six pounds of annuity held by them or upon consignment in bank in the names of the registered holders of such annuities of a sum equal to the price of such stock in accordance with the provisions of this Order.

Provisions
for carrying
out redemption
of water
annuities.

23. In the event of the Corporation resolving in terms of the immediately preceding section to redeem the water annuities therein referred to the following provisions shall have effect:—

(1) The Corporation shall as soon as may be after making such resolution publish a notice of the same in the Edinburgh Gazette and once in each of two consecutive weeks in one or more newspapers circulating in the city and they shall also cause a notice (in this section referred to as "the notice of redemption") to be given to every holder of any such annuity or annuities by sending the same by post in a registered

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letter to the address of such holder as entered in the register or to his last known address : A.D. 1921.

- (2) The notice of redemption shall set forth the terms of such resolution and shall state the method and the terms of the redemption prescribed in the immediately preceding section and this section :
- (3) On or before a day (in this section referred to as "the appointed day") to be named in the notice of redemption every holder of any such annuity or annuities shall transmit or deliver to the Corporation or to a nominee of the Corporation to be named in the notice of redemption the annuity debenture or debentures registered in his name and the Corporation shall thereupon transmit or deliver to him an acknowledgment in writing of the receipt of such annuity debenture or debentures and an obligation to register in his name or in the name of his nominee consolidated stock of the amount and in the manner as hereinafter in this section mentioned :
- (4) The appointed day shall be a date not less than three months from the date of the notice of redemption :
- (5) In the event of the loss of any debenture for any such annuity the production of proof of such loss shall be held to be equivalent to the delivery to the Corporation or their nominee of such debenture :
- (6) Where in terms of this section a holder of any such annuity or annuities shall have on or before the appointed day transmitted or delivered to the Corporation or to the nominee of the Corporation the annuity debenture or debentures registered in his name or shall have produced proof of the loss of the same as aforesaid the Corporation shall as soon as may be after the appointed day register or cause to be registered at the Bank of England in the name of such holder or in the name of any nominee whom he may appoint by writing transmitted or delivered to the Corporation before the appointed day two and a half per centum consolidated stock of the United Kingdom at the rate of two hundred and forty

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pounds of the nominal value of such stock for each six pounds of annuity held by him and the Corporation shall also pay to such holder the amount of annuity accrued in respect of the debenture or debentures delivered up to the Corporation less the amount of any accrued interest on such stock :

- (7) In the event of the registered holder of any debenture for any such annuity failing to deliver such debenture to the Corporation or their nominee or to produce proof of its loss as aforesaid on or before the appointed day the Corporation shall as soon as may be after the appointed day consign in any bank in Scotland incorporated by Royal Charter or by or under Act of Parliament in the name or to the credit of such holder a sum sufficient to purchase two and a half per centum consolidated stock of the United Kingdom at the rate of two hundred and forty pounds of the nominal value of such stock for each six pounds of annuity held by him and that at the closing official selling price of such stock mentioned in the official list of the London Stock Exchange for the day for which that list is issued last preceding the appointed day such sum to be paid to him on production and delivery to such bank of such debenture or debentures or on production to such bank of proof of the loss of the same and the Corporation shall also cause a notice to be sent by post in a registered letter to such holder stating that such sum had been placed to his credit as aforesaid and specifying the name of the bank in which the same is placed Provided always that the sum lodged in any such bank as aforesaid for the redemption of the annuity or annuities named in such notice shall be at the risk of the Corporation for six months only from the date of such notice and after the expiry of such six months such sum if allowed to remain in such bank shall remain there at the risk of the person or persons entitled to the annuity or annuities referred to in such notice and for the redemption of which such sum shall have been so lodged in the bank as hereinbefore provided ;

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- (8) The delivery to the Corporation or their nominee of the annuity debenture or debentures or the production of proof of the loss of the same in terms of this section or in the case of any annuity debenture or debentures which have not been delivered or proof of the loss of the same has not been produced as aforesaid the receipt of the bank for the payment or deposit of the sum referred to in the immediately preceding subsection shall be a sufficient discharge to the Corporation and thereupon the said annuity or annuities shall whether the annuity debenture or debentures have or have not been produced and delivered up as aforesaid be deemed to be and shall be redeemed and an entry of the redemption of such annuity or annuities shall be made in the register of annuities and such annuity or annuities shall be wholly extinguished and thereupon the liability of the Corporation to pay or provide for the payment of such annuity or annuities shall cease and determine and the water undertaking and the whole lands estates properties and revenues of the Corporation shall be freed and discharged thereof.
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24. Notwithstanding any provisions contained in the Water Acts the Gas Acts and the Water of Leith Acts relating to the redemption of debt and sinking funds and in lieu thereof the following provisions shall have effect videlicet:—

Redemption
of debt and
sinking
funds.

- (1) The Corporation shall during the year ending on the fifteenth day of May one thousand nine hundred and twenty-two and annually thereafter out of the revenues of the water undertaking set apart as sinking funds and pay into the loans fund—

(A) A sum equal to not less than one-eighth part of the net amount borrowed on mortgage by the water trustees and outstanding as at the fifteenth day of May one thousand nine hundred and twenty under the authority or for the purposes of the Acts relating to the water undertaking passed during the years 1869 to 1889 or any of them ;

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(B) A sum equal to not less than one-fortieth part of the amount borrowed on mortgage by the water trustees and outstanding as at the fifteenth day of May one thousand nine hundred and twenty under the authority or for the purposes of the Acts or Orders relating to the water undertaking passed during the years 1895 to 1908 or any of them ;

(C) A sum equal to not less than one-fiftieth part of the amount borrowed on mortgage by the water trustees and outstanding as at the fifteenth day of May one thousand nine hundred and twenty under the authority or for the purposes of the Edinburgh and District Water Order 1914 ;

(D) A sum equal to not less than one-fortieth part of the amount represented by the capital value of the annuities created under the provisions of the Edinburgh and District Waterworks Act 1869 outstanding at the fifteenth day of May one thousand nine hundred and twenty Provided (A) that for the purposes of this subsection the annuities aforesaid shall be capitalised at sixteen and two-thirds years' purchase less any sinking funds accumulated for the redemption thereof and (B) that in the event of moneys being borrowed to redeem the aforesaid annuities in terms of the provisions of this Order such payments shall cease in respect of any such annuities as may be redeemed under the provisions of this Order and in lieu of such payments there shall be paid into the loans fund such equal annual sums as will ensure that the amount to be borrowed by the Corporation under the provisions of this Order for the redemption of the foresaid annuities shall be wholly repaid by the fifteenth day of May one thousand nine hundred and sixty-one :

(2) The Corporation shall annually out of the revenues of the water undertaking set apart as sinking funds and pay into the loans fund a

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sum equal to not less than one-fiftieth part of any sums borrowed between the fifteenth day of May one thousand nine hundred and twenty and the commencement of this Order or that may hereafter be borrowed under the authority or for the purposes of the Water Acts or any of them : A.D. 1921.

- (3) The Corporation shall during the year ending on the fifteenth day of May one thousand nine hundred and twenty-two and annually thereafter out of the revenues of the gas undertaking set apart as sinking funds and pay into the loans fund—

(A) A sum equal to not less than one-thirtieth part of the net amount borrowed on mortgage by the gas commissioners and outstanding as at the fifteenth day of May one thousand nine hundred and twenty under the authority or for the purposes of the Gas Acts or any of them ;

(B) A sum equal to not less than one-fortieth part of the amount represented by the capital value of the annuities created under the provisions of the Edinburgh and Leith Corporations Gas Act 1888 and outstanding at the fifteenth day of May one thousand nine hundred and twenty provided that in the event of moneys being borrowed to redeem the aforesaid annuities in terms of section 5 of the Edinburgh and Leith Corporations Gas Order 1908 such payments shall cease in respect of any such annuities as may be redeemed in terms of that section and in lieu of such payments there shall be paid into the loans fund such equal annual sums as will ensure that the amount to be borrowed by the Corporation for the purposes of the redemption of the foresaid annuities shall be wholly repaid by the fifteenth day of May one thousand nine hundred and sixty-one :

- (4) The Corporation shall annually out of the revenues of the gas undertaking set apart as sinking funds and pay into the loans fund a sum equal to not less than one-fortieth part of

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any sums borrowed between the fifteenth day of May one thousand nine hundred and twenty and the commencement of this Order or that may hereafter be borrowed under the authority or for the purposes of the Gas Acts or any of them :

- (5) The Corporation shall during the year ending on the fifteenth day of May one thousand nine hundred and twenty-two and annually thereafter out of the revenues of the Water of Leith undertaking set apart as sinking funds and pay into the loans fund—

(A) A sum equal to not less than one-seventh part of the net amount borrowed by the Water of Leith Commissioners and outstanding as at the fifteenth day of May one thousand nine hundred and twenty for the purposes of the Water of Leith Purification and Sewerage Act 1889 and the Water of Leith Purification and Sewerage (Additional Powers) Act 1893 or either of them ;

(B) A sum equal to not less than one-twenty-fifth part of the net amount borrowed by the Water of Leith Commissioners as at the fifteenth day of May one thousand nine hundred and twenty for the purposes of the Water of Leith Purification and Sewerage Order 1908 :

- (6) The Corporation shall annually out of the revenues of the Water of Leith undertaking set apart as sinking funds and pay into the loans fund a sum equal to not less than one-fortieth part of any sums borrowed between the fifteenth day of May one thousand nine hundred and twenty and the commencement of this Order or that may hereafter be borrowed under the authority or for the purposes of the Water of Leith Acts or any of them :
- (7) For the purposes of this section the expression "net amount borrowed" shall mean the amount borrowed less any sinking funds accumulated for the repayment thereof :
- (8) Nothing in this section shall prejudice or affect the powers with respect to the redemption of annuities and the repayment of borrowed money

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conferred by section 7 (Supplementary provisions as to reserve fund) of the Edinburgh and Leith Corporations Gas Order 1908. A.D. 1921.
—

25. In addition to any money which the Edinburgh and District Water Trustees or the Corporation have borrowed or are authorised to borrow under the Water Acts the Corporation may borrow under the authority of this Order (1) For the redemption of the perpetual annuities created under the provisions of the Edinburgh and District Waterworks Act 1869 or the balance of such annuities remaining unredeemed for the time any sum or sums not exceeding in the whole five hundred thousand pounds and (2) For the purchase of lands and the construction of works authorised by the Edinburgh and District Water Order 1914 any sum or sums not exceeding in the whole the sum of one hundred thousand pounds and the provisions of the Edinburgh Municipal and Police Acts and this Order in respect of money borrowed and to be borrowed and the security therefor shall apply to the money to be borrowed under the provisions of this section Provided that for the purposes of the immediately preceding section of this Order any sum or sums borrowed under the second head of this section shall be deemed to be borrowed for the purposes of the Water Acts. Borrowing for water undertaking.

26. Section 67 of the Act of 1879 shall be read as if the following words occurring therein were deleted therefrom "Provided always that the burgh assessments shall not be imposed on the occupiers (not being owners) of lands and heritages rented or valued under five pounds" and the said section is hereby amended accordingly and section 72 of the Act of 1879 is hereby repealed. Repeal of certain provisions of Act of 1879.

27. The Corporation are hereby authorised to impose assess and levy within the city and recover apply and use for the execution of the works authorised by this Order or any of them and for the acquisition of lands and heritages and servitudes or other property which may be required in connexion therewith the burgh assessments under their control applicable to general improvements under the third head of estimate mentioned in section 66 (Expenses to be estimated) of the Act of 1879 as amended and extended by the several Edinburgh Municipal and Police Acts thereafter passed and so far as in force for the time within the city or so much of the said assessments as may be necessary for such purposes in the way Power to apply burgh assessment.

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A.D. 1921. — and manner and by the same means as are provided in the Act of 1879 as so amended and extended.

Application
of provisions
of Act of
1879 as to
borrowing
money.

28. Subject to the provisions of this Order the Corporation are hereby authorised to borrow money for executing the works authorised by this Order or any of them and for the acquisition of lands and heritages servitudes and other property which may be required in connexion therewith on the security of the burgh assessments before mentioned under their control and to be levied and applied and used as in this Order provided and they shall provide a sinking fund for the repayment of the sums so borrowed and sections 81 (Power to borrow money for the purposes of this Act) 82 (Power to borrow on cash credit) 83 (Mortgages to be recorded and assignments to be registered) 84 (Sinking fund) 86 (Borrowing power for current expenses) 87 (Arrears may be enforced by appointment of judicial factor) 88 (Powers and duties of judicial factor) 89 (Magistrates and council not to be personally liable) of the Act of 1879 as to borrowing money are as amended and extended by the several Edinburgh Municipal and Police Acts thereafter passed and by this Order and so far as in force for the time within the city incorporated herewith and the powers and provisions therein contained and as so amended and extended shall be held to apply to the purposes of this Order and to the money borrowed under the authority of this Order as if such sections as so amended and extended were re-enacted in this Order.

PART IV.

MISCELLANEOUS.

Filling up
vacancies
in council.

29. From and after the first Tuesday of November one thousand nine hundred and twenty-one section 43 (Filling up vacancy in council) of the Act of 1893 shall be and the same is hereby repealed and in lieu thereof the following provisions shall notwithstanding the provisions of the Town Councils (Scotland) Act 1900 apply and have effect within the city (that is to say):—

- (1) In the case of any vacancy in the number of members of the town council for any municipal ward in the city occurring from any cause in the course of the year such vacancy shall be filled up by the electors of the ward and such election and the nomination of candidates shall be made and conducted and the costs and

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charges defrayed in all respects as at the annual election held on the first Tuesday in November provided that-- A.D. 1921.
—

(A) The town clerk shall as soon as conveniently may be after the occurrence of the vacancy insert in one or more newspapers circulating in the city a notice of such vacancy ;

(B) The nomination or nominations of a candidate or candidates by the electors of the ward shall be lodged with the town clerk within five clear days of the notice of the vacancy being given ;

(C) If one person only is nominated such person shall on the expiry of the period for lodging nominations be held to be duly elected to fill the vacancy ;

(D) If more than one candidate is nominated for the vacancy the election shall take place on a day to be appointed by the Corporation of which notice shall be given in one or more of such newspapers but shall not take place sooner than five clear days from the publication of such notice ;

(E) The person elected to fill the vacancy shall hold the office of councillor during the period which the person last vacating such office might lawfully have held it ;

(F) If such vacancy occurs within three months before the eleventh day of October immediately preceding the next ensuing annual November election the Corporation may if they think fit resolve that the same shall not be filled up until such annual election on the first Tuesday in November :

- (2) In the case of any vacancy in the number of members of the town council for any municipal ward in the city occurring by reason of any such member resigning his office and intimating that he desires his resignation to take effect at the date of the next succeeding annual election or where a vacancy occurs within three months before the eleventh day of October immediately

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preceding the next ensuing annual election and the Corporation under the provisions of the preceding subsection resolve that the same shall not be filled up until such annual election any such vacancy shall be filled up at such annual election and where on that account or for any other reason more than one member of the town council requires to be elected for the ward at such annual election the following provisions shall apply and have effect with respect to the duration of office and order of retiral of the members so elected for the ward (that is to say):—

(A) Where the number of members to be elected for the ward at such annual election is three the duration of office and order of retiral of such members shall be determined according to the number of votes received by them respectively and the member who received the smallest number of votes shall be first in the order of retiral the member who received the next smallest number of votes shall be second in the order of retiral and the member who received the largest number of votes shall be last in the order of retiral ;

(B) Where the number of members to be elected for the ward at such annual election is two the duration of office and order of retiral of such members shall be determined according to the number of votes received by them respectively and the member who received the larger number of votes shall be last in the order of retiral for that ward and the member who received the smaller number of votes shall continue in office for one or two years according as the remaining member of the ward who was elected prior to such annual election does or does not fall to retire in ordinary course at the following annual election in November and the period of office of such remaining member shall not be affected by reason of the two other members for the ward having been elected at one and the same time ;

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(c) In the event of there having been no contest or an equality of votes at such annual election the Corporation shall decide the order of retiral at a meeting to be held so soon as conveniently may be after such annual election and not later than the month of September immediately preceding the next ensuing election.

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30. The expression "common lodging house" in the Edinburgh Municipal and Police Acts shall from and after the commencement of this Order mean a house or part thereof where lodgers are housed at an amount not exceeding one shilling per night or such other smaller sum as shall be fixed under the provisions of this section or under the provisions of the Public Health (Scotland) Act 1897 as amended by this section for each person whether the same be payable nightly or weekly or for any period not longer than a fortnight and shall include any place where emigrants are lodged and all boarding houses for seamen irrespective of the rate charged for lodging or boarding. Provided that the Scottish Board of Health or the Corporation with the approval of the Scottish Board of Health may from time to time diminish the sum payable per night according to which as in this section mentioned it is ascertained whether a house or part thereof is a common lodging house and in its application to the city section 89 of the Public Health (Scotland) Act 1897 shall subject to the provisions of this section be read and construed as if the words "one shilling" were inserted therein in lieu of the word "sixpence."

Definition
of common
lodging
house.

31.—(1) The Corporation may for the preservation and maintenance of any right of way within the city the acquisition of which in the opinion of the Corporation is beneficial to the inhabitants of the city or any part thereof acquire by agreement any such right of way.

Rights of
way.

(2) The Corporation may repair and maintain all or any of the public ways within the city which parish councils within the suburban areas annexed to the city by the Act of 1920 maintained or were authorised to maintain or which may be acquired by the Corporation under the provisions of this section and the expense of such repair and maintenance shall be defrayed out of the burgh assessments under the second head of estimate mentioned

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A.D. 1921. in section 66 (Expenses to be estimated) of the Act of 1879 but this power shall not nor shall the exercise thereof relieve any other authority or person from any liability with respect to such repair or maintenance and such repair or maintenance shall not involve the Corporation in any liability for damages to person or property resulting from the condition in which any such way may be maintained.

Amendment
of section 64
of the Order
of 1901.

32. From and after the commencement of this Order section 64 (Purchase of lands for street improvements) of the Edinburgh Corporation Order 1901 shall be read and construed as if the words "situated within a distance of thirty-five feet from the centre line of said street" were omitted therefrom and the words "necessary to make" the said street or any part thereof of a width not exceeding "seventy feet" were inserted therein in lieu thereof.

Road
improve-
ments.

33. Section 74 (Power to purchase lands for widening streets) of the Edinburgh Corporation Act 1897 shall be amended by the addition thereto of the following subsections :—

"(2) Notwithstanding anything contained in
" the Lands Clauses Acts an Order under this
" section by the sheriff or by the Secretary for
" Scotland authorising the acquisition of any lands
" or property may if a part only of a house building
" or manufactory is required for the purposes of
" the Corporation require the owner of and other
" persons interested in such house building or
" manufactory to sell and convey such part to the
" Corporation provided that the arbiter by whom
" the compensation may be determined is of opinion
" that such part can be severed from the remainder
" of the property without material detriment
" thereto and in such case the Corporation shall
" not be obliged to purchase the whole or any
" greater part thereof and shall pay for the part
" acquired by them and make compensation for
" any damage sustained by the owner thereof or
" other persons interested therein by severance or
" otherwise."

"(3) For the purposes of this section 'the
" sheriff' shall mean the sheriff of the Lothians
" and Peebles excluding his substitutes."

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“ (4) This section shall not apply to any lands
“ or property owned leased or used as part of the
“ undertaking of any railway company.”

A.D. 1921.

34.—(1) The Corporation may and they are hereby authorised by resolution passed or order made at a meeting of the Corporation in the notice for which such purpose is specifically stated to allow any person in circumstances where they deem it expedient so to do to construct and maintain bridges over and tunnels or subways under any street in the city and such bridges tunnels or subways or any of them shall only be constructed with the consent of the Corporation and subject to such terms and conditions as the Corporation may prescribe and the person constructing any such bridge tunnel or subway or his successor in title shall be responsible for the proper maintenance and repair thereof and for any accident that may result from any default arising out of or in connexion with such maintenance and repair.

Bridges over
and tunnels
or subways
under streets.

(2) In the event of the construction of any such bridge tunnel or subway involving the alteration of a telegraphic line of the Postmaster-General the enactments contained in section 7 of the Telegraph Act 1878 shall apply to such alteration and any such bridge tunnel or subway shall for the purposes of the placing or maintenance of telegraphic lines under the powers conferred by the Telegraph Acts 1863 to 1920 be deemed part of the street over or under which the same is constructed.

(3) The Corporation shall not under the powers of this section allow any person to construct any such bridge over and tunnel or subway under any street in the city where a railway undertaking or any part thereof including among others any tunnels bridge foundations abutments sewers telegraph posts or wires might be affected by the construction of such works without the consent of the railway company concerned and such railway company shall be entitled to prescribe the terms and conditions upon which the works may be constructed.

(4) The Corporation shall as soon as may be after any resolution has been passed or order made under the provisions of this section publish a notice of the same once in each of two successive weeks in one or more newspapers circulating in the city and any owner or person interested in adjoining property considering himself

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A.D. 1921. — aggrieved by such resolution or order may appeal there-
against to the sheriff provided that within one month
from the first publication of such notice he gives written
intimation of such appeal and the grounds thereof to the
town clerk and in the event of any such appeal being
made the sheriff shall take the resolution or order into
consideration along with the appeal and shall hear parties
and may require them to submit evidence and the sheriff
may confirm the resolution or order as passed or made
by the Corporation or subject to such alterations or
modifications thereon as he may consider requisite or
if he considers that in the circumstances the resolution
or order should not have been made declare the same
to be void and of no effect and his decision shall be final
as regards the said resolution or order and he may award
expenses such expenses to be recoverable as a civil debt.

Water of
Leith.

35.—(1) In addition to the powers contained in the
Water of Leith Acts the Corporation shall have power
to clean the bed or channel of the Water of Leith within
the city for the purpose of preserving and maintaining
the free flow of water and keeping the bed or channel
of the stream clear of accumulations of silt refuse or
other obstructions and the expense of carrying out the
powers of this section shall be borne in the same way and
manner as expenses connected with the carrying out of
the provisions of the Water of Leith Acts provided that
the powers conferred by this section or the exercise thereof
shall not relieve any other authority or person from any
liability attaching to such authority or person in reference
to the matters hereinbefore in this section referred to
Provided that in exercising the powers conferred by this
section the Corporation shall not enter upon take or
acquire or interfere with any land or other property or
work belonging to a railway company otherwise than
with the consent of such company.

(2) Before commencing any of the operations from
time to time under the powers of this section which may
affect or be likely to affect any railway undertaking or
relative works or any bridges retaining walls and piers
or the abutments or foundations of any of such works or
any lands or property belonging to or leased worked used
or maintained by a railway company the Corporation shall
give fourteen days' notice in writing to the railway
company concerned of their intention to commence such

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operations and such operations shall be carried out under the superintendence and to the reasonable satisfaction of such railway company. A.D. 1921.

(3) The Corporation shall be liable to any such railway company for all damage or loss which may be occasioned to their railway undertaking or relative works or to any bridges retaining walls and piers or the abutments or foundations of any of such works or to any lands or property belonging to or leased worked used or maintained by the railway company or for any damage detention or loss of traffic sustained by them by reason of interruption to or interference with their traffic in consequence of the said operations of the Corporation.

(4) If any difference shall at any time arise between the Corporation and any such railway company with respect to any matter arising under this section such difference shall be determined by an arbiter to be agreed upon between the Corporation and the railway company or failing agreement an arbiter to be nominated by the Ministry of Transport on the application of either party.

36. Nothing in the sections of this Order of which the marginal notes are "Road improvements" "Bridges over and tunnels or subways under streets" and "Water of Leith" shall repeal or extinguish any powers privileges immunities authorities or exemptions conferred on or enjoyed by the commissioners for the harbour and docks of Leith under any laws statutes jurisdictions powers privileges and usages. For protection of Leith Dock Commission.

37. The sections of this Order of which the marginal notes are "Amendment of section 64 of the Order of 1901" and "Road improvements" shall not apply to any lands or property belonging to the parish council of the city parish of Edinburgh utilised or acquired or which may hereafter be acquired for or in connexion with any institution of the said parish council including without prejudice to the said generality an area of land extending to 3.109 acres or thereby situated immediately to the west of Craighleith Poorhouse which has been feued by the said parish council for the purpose of erecting and providing thereon a mental hospital. For protection of Edinburgh Parish Council.

38. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the Crown. Crown rights.

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Costs of
Order.

39. All costs charges and expenses of and incident to the preparation obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Corporation and may be allocated by them amongst such of the departments of the Corporation as they may deem expedient And if any such costs are paid out of borrowed money the amount thereof shall be repaid within the period of five years from the commencement of this Order.

SCHEDULES referred to in the foregoing Order.

THE FIRST SCHEDULE.

(Referred to in the section of this Order of which the marginal note is "Owners may be required to sell parts only of certain lands and buildings.")

PROPERTIES OF WHICH PORTIONS ONLY MAY BE TAKEN WITHOUT
TAKING THE WHOLE.

Parish.	Numbers on deposited Plans.
City Parish of Edinburgh -	1 2 5 6 7 8 9 10 11 12 13 14 15 17 18 20 23 24 25 26 27 28 29 30 31 32 33 34.

THE SECOND SCHEDULE.

(Referred to in the section of this Order of which the marginal note is "Gas annuity certificates.")

FORM OF GAS ANNUITY CERTIFICATE.

CORPORATION OF THE CITY OF EDINBURGH.

Gas Annuity Certificate.

No.

Register No.

This is to certify that A.B. [name and designation] is entitled to receive from the lord provost magistrates and council of the city of Edinburgh an annuity of pounds

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payable by equal half-yearly portions on the fifteenth day of May and eleventh day of November in each year beginning the first payment thereof on the day of one thousand nine hundred and for the half-year preceding and so forth thereafter which annuity is subject to the provisions of the Edinburgh and Leith Corporations Gas Act 1888 preferably secured on the rates rents charges and other revenues to be levied and received by the said lord provost magistrates and council for the supply of gas and the sale of residual products and with the privileges conferred by the said Act. A.D. 1921.

Dated this day of one thousand nine hundred and .

[To be signed by two members of the Corporation and by the city chamberlain or by a depute city chamberlain and the seal of the city to be affixed.]

MEMORANDUM.—By virtue of the provisions of the said Act of 1888 and the Edinburgh Boundaries Extension and Tramways Act 1920 the annuities hereby secured may in the option of the lord provost magistrates and council be redeemed by them on three months' notice at any term of Whitsunday or Martinmas at the price of $28\frac{1}{2}$ years' purchase thereof.

Form of Transfer of Gas Annuity Certificate.

I A.B. [name and designation] in consideration of the sum of pounds (or other consideration as the case may be) paid to me by C.D. [name and designation] do hereby transfer to the said C.D. and his executors administrators or assignees the annuity of pounds No. (as the case may be) of the gas annuities created under and by virtue of the Edinburgh and Leith Corporations Gas Act 1888 now standing in my name in the books of the Corporation of the city of Edinburgh with the rights and privileges and subject to the conditions and provisions specified in the said Act And I the said C.D. do hereby agree to hold the said annuity subject to the same conditions and provisions :

In witness whereof—

[Insert testing clause according to the form of the law of Scotland if executed in Scotland and if executed in England or elsewhere the form of execution and attestation used in England may be adopted.]

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THE THIRD SCHEDULE.

(Referred to in the section of this Order of which the marginal note is "Water annuity debentures.")

FORM OF WATER ANNUITY DEBENTURE.

CORPORATION OF THE CITY OF EDINBURGH.

Water Annuity' Debenture.

No.

Register No.

This is to certify that A.B. [*name and designation*] is entitled to receive from the lord provost magistrates and council of the city of Edinburgh an annuity of _____ pounds
_____ shillings and _____ pence payable
by equal half-yearly portions on the fifteenth day of May and
eleventh day of November in each year beginning the first pay-
ment thereof on the _____ day of
one thousand nine hundred and _____ for the half-year
preceding and so forth thereafter which annuity is preferably
secured on the undertaking property and works vested in the
said lord provost magistrates and council as coming in place
of the Trustees appointed under the Edinburgh and District
Waterworks Act 1869 in virtue of the said Act and of the Edin-
burgh Boundaries Extension and Tramways Act 1920 or to be
vested in them from time to time in such capacity and on the
several rates and other revenues to be levied and received by
them under the provisions of the Edinburgh and District
Waterworks Acts 1869 to 1914 as amended by the said Act of
1920.

Dated this day of one thousand nine
hundred and .

[To be signed by two members of the Corporation and by the city chamberlain or by a depute city chamberlain and the seal of the city to be affixed.]

Form of Transfer of Water Annuity Debenture.

I *A.B. [name and designation]* in consideration of the sum of _____, (or other consideration as the case may be) paid to me by *C.D. [name and designation]* do hereby transfer to

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the said *C.D.* and his executors administrators and assignees the annuity of _____ pounds No. (as the case may be) of the water annuities created under and by virtue of the Edinburgh and District Waterworks Act 1869 now standing in my name in the books of the Corporation of the city of Edinburgh with the rights and privileges and subject to the conditions and provisions specified in the said Act And I the said *C.D.* do hereby agree to hold the said annuity subject to the same conditions and provisions :

A.D. 1921.
—

In witness whereof—

[Insert testing clause according to the form of the law of Scotland if executed in Scotland and if executed in England or elsewhere the form of execution and attestation used in England may be adopted.]

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